

**IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, STATE OF FLORIDA
FAMILY LAW DIVISION**

In re: the Marriage of:

SARAH HANSON,

Petitioner/Wife,

and

CHRISTOPHER HANSON,

Respondent/Husband.

Case Number: 2024-DR-001150

Division: A

**ORDER DENYING RESPONDENT'S MOTION TO TRANSFER VENUE
AND/OR SECOND VERIFIED MOTION TO DISQUALIFY JUDGE
AYERS (AS TO TRANSFER OF VENUE)**

This matter came before the Court on June 3, 2025, upon Respondent's Motion to Transfer Venue and/or Second Verified Motion to Disqualify Judge Ayers [**DIN 183**] as to the issue of venue¹. Present before the Court via Zoom Videoconferencing were Petitioner, Sarah Hanson ("**Wife**"), her attorney, Scott Paul Davis, Esq., B.C.S., and Respondent, Christopher Hanson ("**Husband**"), who represented himself pro se. The Court having reviewed the motion and court file, entertained argument, and being otherwise fully advised in the premises, makes the following **FINDINGS:**

- A. Section 47.011, Florida Statutes is the controlling venue statute in this matter. In general, an action shall be brought only in a county where the defendant resides, where the cause of action accrued, or where the property in litigation is located.
- B. For purposes of applying section 47.011, Florida Statutes to a dissolution of marriage action, the cause of action arises in the last county where the parties resided as husband

¹ Respondent's Motion to Transfer Venue and/or Second Verified Motion to Disqualify Judge Ayers as to the issue of disqualification was granted by the Court on April 28, 2025 [**DIN 184**].

and wife with the common intent to remain married. *Carroll v. Carroll*, 347 So. 2d 771, 772 (Fla. 1977); *Kopecky v. Kopecky*, 967 So. 2d 1109, 1111 (Fla. 4th DCA 2007).

- C. A party may challenge venue because the venue chosen by the petitioner was legally improper or because the petitioner's chosen venue (although proper) is an "inconvenient forum." The inconvenient forum argument comes from section 47.122, Florida Statutes, which states that "[f]or the convenience of the parties or witnesses or in the interest of justice, any court of record may transfer any civil action to any other court of record in which it might have been brought."
- D. It is legal error and an abuse of discretion for a court to utilize forum non conveniens to transfer an action to a venue not permitted by the applicable venue statute(s), as a court can only transfer an action to a jurisdiction where the action "might have been brought." See *Vitale v. Vitale*, 994 So. 2d 1242, 1243 (Fla. 4th DCA 2008); *McGee v. McGee*, 145 So.3d 955, (Fla. 1st DCA 2014).
- E. In the instant matter, paragraphs of Husband's motion that appear to directly address Husband's request for a transfer of venue are paragraphs 97 and 98, which state the following:
- i. **Paragraph 97:** It's necessary that the Court transfer the case to a new Judge, or ideally, to a new venue such as Pasco County where Wife resides so that, the litigants have "their disputes resolved by impartial judges" "free from bias and prejudice" in assessing these issues critical to the litigants and children's future well-being as required by *Berry v. Berry* 765 So.2d 855 (Fla. 5th DCA 2000).
 - ii. **Paragraph 98:** Given the evidence of bias in favor of Mr. Davis, Ms. Hodz, and the other attorneys involved, at the expense of Husband's due process rights and

other interests, it's obvious Husband has no change at fair process in front of Judge Ayers, and likely in Hillsborough County at all.

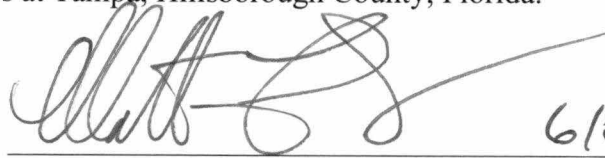
- F. As to the correct choice of venue, the Court notes that paragraph four (4) of Wife's Amended Petition for Dissolution of Marriage [**DIN 42**] states "Venue is proper in the Thirteenth Judicial Circuit because the Parties last resided together as Husband and Wife in Hillsborough County. Paragraph four (4) of Husband's Answer to Wife's Amended Petition for Dissolution of Marriage [**DIN 79**] responds by stating "Admitted." Perhaps more noteworthy, paragraph three (3) of Husband's Counter-Petition for Dissolution of Marriage [**DIN 79**] states "Venue is proper in Hillsborough County because this is where the intact marriage of these Parties was last evidenced by a continuing union and the intent to remain married to each other." Accordingly, the Court finds that Hillsborough County is the appropriate venue for this action.

Based upon the foregoing, it is hereby **ORDERED** and **ADJUDGED** as follows:

1. Husband's Motion to Transfer Venue and/or Second Verified Motion to Disqualify Judge Ayers, as to Husband's request for a transfer of venue is denied.
2. The Court reserves jurisdiction to consider both parties requests for an award of attorney's fees and costs incurred in connection with Husband's Motion to Transfer Venue and/or Second Verified Motion to Disqualify Judge Ayers, as to Husband's request for a transfer of venue.

3. All prior Orders of the Court not specifically modified herein shall remain in full force and effect.

DONE and **ORDERED** in Chambers at Tampa, Hillsborough County, Florida.

A handwritten signature in black ink, appearing to read 'Matthew L. Felix', written over a horizontal line.

6/23/25

HONORABLE MATTHEW L. FELIX
ACTING CIRCUIT JUDGE

**Conformed copies furnished via
Florida Courts E-Filing Portal to:**

Scott Paul Davis, Esq., B.C.S.
Christopher Hanson, Esq., pro se